

FOURTH OF JULY ORATION

THE AMERICAN MIND

BY

REV. CHARLES W. LYONS, S. J.



1923

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Title: Oration: The American Mind

Author: Charles W. Lyons

Contributor: C. W. Ernst

Release date: July 30, 2020 [eBook #62784]

Most recently updated: October 18, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/62784

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*** START OF THE PROJECT GUTENBERG EBOOK ORATION: THE
AMERICAN MIND ***



C. W. Lyons S. J.

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ORATION

THE AMERICAN MIND

BY

REV. CHARLES W. LYONS, S. J.

DELIVERED BEFORE THE CITY GOVERNMENT AND CITIZENS OF BOSTON
IN FANEUIL HALL, ON THE ONE HUNDRED AND FORTY-SEVENTH
ANNIVERSARY OF THE DECLARATION OF INDEPENDENCE
OF THESE UNITED STATES, JULY 4, 1923



CITY OF BOSTON
PRINTING DEPARTMENT
1923

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FOURTH OF JULY ORATION, 1923.

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In the evolution of any life, whether it be that of an individual or of that corporate moral union we know as society, there are times when it seems fitting and proper to pause from the whirl of incessant activities, turn aside from accustomed line of thought, and let the mind run sweetly and lovingly over a treasured past.

And today our beloved country, in the fulness of her achievement, with the memories of one hundred and forty-seven years, one hundred and forty-seven golden years, lived only that her children might grow, as from eternity the Creator had destined them to grow, in the full security of rights that are inalienable.

Today our beloved country turns to us children of a later generation and pleads that we follow this generous impulse of nature, and tarry for the moment, while she lives over again the thoughts and emotions and heroic sacrifices that gave her birth.

They were not new thoughts or unknown emotions. As John Quincy Adams so well remarked in his scholarly discourse on the Jubilee of the Constitution: "The Declaration of Independence and the Constitution of the United States are parts of one constant whole, founded upon one and the same theory of government, then new not as a theory, for it had been

working itself into the mind of man for many ages, but it had never before been adopted by a great nation.”

Moses, as narrated in Deuteronomy, had charged the judges in Israel: “There shall be no difference of persons; you shall hear the little as well as the great; neither shall you respect any man’s person, because it is the judgment of God.”

Aristotle had taught that, “the State is not merely an institution for repressing vice, but a necessary formation for the full development of humanity.”

In the Magna Charter the germ of true liberty and equality is seen in the pledges of the king to his people: “We will not set forth against any freeman, nor send against him, unless by the lawful judgment of his peers and by the law of the land; to no one will we sell, to no one will we refuse or delay right or justice.”

The mediæval councils, the military orders, the guilds, followed centuries after by the contract of the Pilgrim Fathers made in the cabin of the “Mayflower” in which they “covenanted and combined themselves into a civil body politic for their better order and preservation,” as well as the charters of the Providence Plantations, of Virginia, and of Maryland, had accustomed the people to joint action of mutual compact and deliberate agreement in defense of liberty and justice which, after all, is the mother of democracy.

While the schoolmen, with scarcely an exception, as Sidwick tells us, taught that, “governments derive their just powers from the consent of the governed.”

“Every constitution,” says Nicholas of Cusa, three and a half centuries before the Declaration of Independence, “is rooted in natural law and cannot be valid if it contradicts it.”

“Since all are free by nature,” he continues, “all government, whether by written law or a prince, is based solely on the agreement and consent of the subject. For if by nature men are equally powerful and free, true and ordered power in the hands of one can be established only by the election and consent of the others, just as law also is established by consent.”

“It is clear, therefore,” he adds, “that the binding validity of all constitutions is based on tacit and expressed agreement and consent.”

And although Elizabeth had asserted in 1585 that “kings and princes sovereign owe their homage and service only to Almighty God,” and James defended the Divine Right of Kings, and the University of Cambridge, in its address to Charles II, had declared that they believed and maintained that “our kings derive not their title from the people but from God,” “Defenders of Liberty” were not wanting, Bellarmine declaring boldly, as Sir Robert Filmer tells us, that “secular or civil power is instituted by men; it is in the people unless they bestow it on a prince. This power is immediately in the whole multitude as in the subject of it. For this power is in the Divine Law, but the Divine Law hath given this power to no particular men; if the positive law be taken away, there is left no reason why amongst a multitude (who are equal) one rather than another should bear rule over the rest. Power is given by the multitude to one man or to more by the same law of nature; for the commonwealth cannot exercise this power, therefore it is bound to bestow it upon some one man or some few. It depends upon the consent of the multitude to ordain over themselves a king or consul or other magistrates. And if there be a lawful cause, the multitude may change the kingdom into an aristocracy or democracy.”

These thoughts and emotions, expressed and re-expressed by the writers, philosophers and political leaders of their day, had seeped down through the ages unactuated, mere themes for academic speculation, until they filtered into the minds and souls of those simple, yet truly great men, who, in signing the Declaration of Independence, gave birth to the nation we so rightfully cherish and so lovingly serve.

In a letter to his friend Henry Lee, dated May 8, 1825, Jefferson, as if in confirmation of what we have just held, notes that the object of the Declaration of Independence was “not to find out new principles, or new arguments, never before thought of, not merely to say things which had never before been said; but to place before mankind the common sense of the subject in terms so plain and firm as to command their assent and to justify ourselves in the independent stand we are compelled to take. Neither aiming at originality of principle or sentiment, nor yet copied from any particular or previous writing, it was intended to be an expression of the *American mind*, and to give to that expression the proper tone and spirit

called for by the occasion. All its authority rests then on the harmonizing sentiments of the day, whether expressed in conversation, in letters, printed essays, or in the elementary books of public right, as Aristotle, Cicero, Locke, Sidney, etc.”

What, then, was this American mind, that, amid problems vexed and theories varied, had sifted the wisdom and folly of the past, discerning the true from the false, the good from the evil, and “of which,” Jefferson was pleased to say, “the Declaration of Independence was intended to be an expression?” And what, again, was “the proper tone and spirit called for by the occasion” that the Declaration of Independence was to give to this expression of the American mind?

If we look more closely at the type of men whose united action founded our nation the answer to this question will not be far to seek. They, like many of us here today, were either immigrants or the immediate descendants of immigrants. They differed in origin, in education, in race, and in creed. They had the traditions, the affections, the prejudices of their times and of their peoples. Yet in common they had left home and country, led on by a vision or an ideal that made a fitting basis for the union that was to come. They would break away from an effete civilization; they would start life anew, freed from the tyranny of unjust laws; they would enjoy liberty to worship their God according to the dictates of their own conscience; they would exercise, without unwarranted interference, their natural and inalienable right to the pursuit of happiness.

Crossing, as they did, the same unknown seas, buffeted by the same winds and waves, coming to the same uncultivated, though not inhospitable shores, their difficulties, their interests, their common foe, drew them together in mutual helpfulness, in united enterprise, and in common defense.

Thus they came to know one another; thus they learned to bear with one another; thus they grew to love one another; and understanding, and tolerance, and brotherly love developed the American mind. So that, when the occasion arose, in proper tone and spirit, it expressed itself in the immortal Declaration of Independence that solved the speculative problems of the past, secured full enjoyment of liberty for its people, and gave hope and inspiration to all mankind and for all time.

And shall we mar the beauty of her gift? Shall we, forgetting our common interests, our common enterprises, our common foes, destroy the unity of purpose and of action that is essential for individual and national prosperity? Shall we, by misunderstanding, by intolerance and hatred, sully the luster of our heritage, breaking the bondage of brotherhood?

Ours is a most responsible trust. We must hand it down to posterity sacred and intact. Capital must make truce with labor; labor must make pact with capital; each must measure even in the scales of justice. The rights—inalienable rights—of man to life, liberty and the pursuit of happiness, must not be infringed. The rights—natural and civic rights—of property must not be denied. Class prejudices, racial pride, assumed superiority, must be dislodged from the minds of men, that justice may function and equality and the dignity of human nature be sustained.

The home must be safeguarded, and its sanctity preserved, that our children be protected and grow—as nature destined them to grow—in wisdom and grace before God and man.

The school—the private and the public school—free as speech and the press are free—must be encouraged that our citizens may understand the Constitution and our laws, and in the full development of their intellectual faculties realize the burdens as well as the privileges of representative government.

The church, the House of God, must have its place of respect, that our children may continue moral and grow in reverence for authority and for the divine and human law.

As Hamilton wrote to Washington, on the occasion of his farewell address: “In all those dispositions which promote political happiness, religion and morality are essential props.”

This, I take it, is the message our beloved country would send to us today. That we be men of *American mind*, the mind that expressed itself in the Declaration of Independence, the mind that was born of understanding, tolerance, and brotherly love, the mind that didn’t hesitate to say, in the closing words of the great document that gave to us our nation, “For the support of this declaration, with a firm reliance on the protection of Divine

Providence, we mutually pledge to each other our lives, our fortunes and our sacred honor.”



**A LIST
OF
BOSTON MUNICIPAL ORATORS.**

By C. W. ERNST.

BOSTON ORATORS

APPOINTED BY THE MUNICIPAL AUTHORITIES.

For the Anniversary of the Boston Massacre, March 5, 1770.

NOTE.—The Fifth of March orations were published in handsome quarto editions, now very scarce; also collected in book form in 1785 and again in 1807. The oration of 1776 was delivered in Watertown.

- 1771.—LOVELL, JAMES.
- 1772.—WARREN, JOSEPH. [\[2\]](#)
- 1773.—CHURCH, BENJAMIN. [\[B\]](#)
- 1774.—HANCOCK, JOHN. [\[A\]](#)[\[2\]](#)
- 1775.—WARREN, JOSEPH.
- 1776.—THACHER, PETER.
- 1777.—HICHBORN, BENJAMIN.
- 1778.—AUSTIN, JONATHAN WILLIAMS.
- 1779.—TUDOR, WILLIAM.
- 1780.—MASON, JONATHAN, JUN.
- 1781.—DAWES, THOMAS, JUN.
- 1782.—MINOT, GEORGE RICHARDS.
- 1783.—WELSH, THOMAS.
-

For the Anniversary of National Independence, July 4, 1776.

NOTE.—A collected edition, or a full collection, of these orations has not been made. For the names of the orators, as officially printed on the title pages of the orations, see the Municipal Register of 1890.

- '83.—WARREN, JOHN. [\[1\]](#)
- '84.—HICHBORN, BENJAMIN.
- '85.—GARDNER, JOHN.
- '86.—AUSTIN, JONATHAN LORING.
- '87.—DAWES, THOMAS, JUN.
- '88.—OTIS, HARRISON GRAY.
- '89.—STILLMAN, SAMUEL.
- '90.—GRAY, EDWARD.
- '91.—CRAFTS, THOMAS, JUN.
- '92.—BLAKE, JOSEPH, JUN. [\[2\]](#)
- '93.—ADAMS, JOHN QUINCY. [\[2\]](#)
- '94.—PHILLIPS, JOHN.
- '95.—BLAKE, GEORGE.
- '96.—LATHROP, JOHN, JUN.
- '97.—CALLENDER, JOHN.
- '98.—QUINCY, JOSIAH. [\[2\]](#)[\[3\]](#)
- '99.—LOWELL, JOHN, JUN. [\[2\]](#)
- '00.—HALL, JOSEPH.
- '01.—PAINE, CHARLES.
- '02.—EMERSON, WILLIAM.
- '03.—SULLIVAN, WILLIAM.
- '04.—DANFORTH, THOMAS. [\[2\]](#)

- 05.—DUTTON, WARREN.
- 06.—CHANNING, FRANCIS DANA. [\[4\]](#)
- 07.—THACHER, PETER. [\[2\]](#)[\[5\]](#)
- 08.—RITCHIE, ANDREW, JUN. [\[2\]](#)
- 09.—TUDOR, WILLIAM, JUN. [\[2\]](#)
- 10.—TOWNSEND, ALEXANDER.
- 11.—SAVAGE, JAMES. [\[2\]](#)
- 12.—POLLARD, BENJAMIN. [\[4\]](#)
- 13.—LIVERMORE, EDWARD ST. LOE.
- 14.—WHITWELL, BENJAMIN.
- 15.—SHAW, LEMUEL.
- 16.—SULLIVAN, GEORGE. [\[2\]](#)
- 17.—CHANNING, EDWARD TYRREL.
- 18.—GRAY, FRANCIS CALLEY.
- 19.—DEXTER, FRANKLIN.
- 20.—LYMAN, THEODORE, JUN.
- 21.—LORING, CHARLES GREELY. [\[2\]](#)
- 22.—GRAY, JOHN CHIPMAN.
- 23.—CURTIS, CHARLES PELHAM. [\[2\]](#)
- 24.—BASSETT, FRANCIS.
- 25.—SPRAGUE, CHARLES. [\[6\]](#)
- 26.—QUINCY, JOSIAH. [\[7\]](#)
- 27.—MASON, WILLIAM POWELL.
- 28.—SUMNER, BRADFORD.
- 29.—AUSTIN, JAMES TRECOTHICK.

- 30.—EVERETT, ALEXANDER HILL.
- 31.—PALFREY, JOHN GORHAM.
- 32.—QUINCY, JOSIAH, JUN.
- 33.—PRESCOTT, EDWARD GOLDSBOROUGH.
- 34.—FAY, RICHARD SULLIVAN.
- 35.—HILLARD, GEORGE STILLMAN.
- 36.—KINSMAN, HENRY WILLIS.
- 37.—CHAPMAN, JONATHAN.
- 38.—WINSLOW, HUBBARD. “The Means of the Perpetuity and Prosperity of our Republic.”
- 39.—AUSTIN, IVERS JAMES.
- 40.—POWER, THOMAS.
- 41.—CURTIS, GEORGE TICKNOR.^[8] “The True Uses of American Revolutionary History.”
- 42.—MANN, HORACE.^[9]
- 43.—ADAMS, CHARLES FRANCIS.
- 44.—CHANDLER, PELEG WHITMAN. “The Morals of Freedom.”
- 45.—SUMNER, CHARLES.^[10] “The True Grandeur of Nations.”
- 46.—WEBSTER, FLETCHER.
- 47.—GARY, THOMAS GREAVES.
- 48.—GILES, JOEL. “Practical Liberty.”
- 49.—GREENOUGH, WILLIAM WHITWELL. “The Conquering Republic.”
- 50.—WHIPPLE, EDWIN PERCY.^[11] “Washington and the Principles of the Revolution.”
- 51.—RUSSELL, CHARLES THEODORE.
- 52.—KING, THOMAS STARR. “The Organization of Liberty on the Western Continent.”^[12]

- 53.—BIGELOW, TIMOTHY. [\[13\]](#)
- 54.—STONE, ANDREW LEETE. [\[2\]](#) “The Struggles of American History.”
- 55.—MINER, ALONZO AMES.
- 56.—PARKER, EDWARD GRIFFIN. “The Lesson of ’76 to the Men of ’56.”
- 57.—ALGER, WILLIAM ROUNSEVILLE. [\[14\]](#) “The Genius and Posture of America.”
- 58.—HOLMES, JOHN SOMERS. [\[2\]](#)
- 59.—SUMNER, GEORGE. [\[4\]](#)[\[15\]](#)
- 60.—EVERETT, EDWARD.
- 61.—PARSONS, THEOPHILUS.
- 62.—CURTIS, THOMAS TICKNOR. [\[8\]](#)
- 63.—HOLMES, OLIVER WENDELL. [\[16\]](#)
- 64.—RUSSELL, THOMAS.
- 65.—MANNING, JACOB MERRILL. “Peace under Liberty.” [\[2\]](#)
- 66.—LOTHROP, SAMUEL KIRKLAND.
- 67.—HEPWORTH, GEORGE HUGHES.
- 68.—ELIOT, SAMUEL. “The Functions of a City.”
- 69.—MORTON, ELLIS WESLEY.
- 70.—EVERETT, WILLIAM.
- 71.—SARGENT, HORACE BINNEY.
- 72.—ADAMS, CHARLES FRANCIS, JUN.
- 73.—WARE, JOHN FOTHERGILL WATERHOUSE.
- 74.—FROTHINGHAM, RICHARD.
- 75.—CLARKE, JAMES FREEMAN. “Worth of Republican Institutions.”
- 76.—WINTHROP, ROBERT CHARLES. [\[17\]](#)

- 77.—WARREN, WILLIAM WIRT.
- 78.—HEALY, JOSEPH.
- 79.—LODGE, HENRY CABOT.
- 80.—SMITH, ROBERT DICKSON. [\[18\]](#)
- 81.—WARREN, GEORGE WASHINGTON. “Our Republic—Liberty and Equality Founded on Law.”
- 82.—LONG, JOHN DAVIS.
- 83.—CARPENTER, HENRY BERNARD. “American Character and Influence.”
- 84.—SHEPARD, HARVEY NEWTON.
- 85.—GARGAN, THOMAS JOHN.
- 86.—WILLIAMS, GEORGE FREDERICK.
- 87.—FITZGERALD, JOHN EDWARD.
- 88.—DILLAWAY, WILLIAM EDWARD LOVELL.
- 89.—SWIFT, JOHN LINDSAY. [\[19\]](#) “The American Citizen.”
- 90.—PILLSBURY, ALBERT ENOCH. “Public Spirit.”
- 91.—QUINCY, JOSIAH. [\[20\]](#) “The Coming Peace.”
- 92.—MURPHY, JOHN ROBERT.
- 93.—PUTNAM, HENRY WARE. “The Mission of Our People.”
- 94.—O’NEIL, JOSEPH HENRY.
- 95.—BERLE, ADOLPH AUGUSTUS. “The Constitution and the Citizens.”
- 96.—FITZGERALD, JOHN FRANCIS.
- 97.—HALE, EDWARD EVERETT. “The Contribution of Boston to American Independence.”
- 98.—O’CALLAGHAN, REV. DENIS.
- 99.—MATTHEWS, NATHAN, JR. “Be Not Afraid of Greatness.”
- 00.—O’MEARA, STEPHEN. “Progress Through Conflict.”

- 01.—GUILD, CURTIS, JR. "Supremacy and its Conditions."
- 02.—CONRY, JOSEPH A.
- 03.—MEAD, EDWIN D. "The Principles of the Founders."
- 04.—SULLIVAN, JOHN A. "Boston's Past and Present. What Will Its Future Be?"
- 05.—COLT, LE BARON BRADFORD. "America's Solution of the Problem of Government."
- 06.—COAKLEY, TIMOTHY WILFRED. "The American Race: Its Origin, the Fusion of Peoples; Its Aim, Fraternity."
- 07.—HORTON, REV. EDWARD A. "Patriotism and the Republic."
- 08.—HILL, ARTHUR DEHON. "The Revolution and a Problem of the Present."
- 09.—SPRING, ARTHUR LANGDON. "The Growth of Patriotism."
- 10.—WOLFF, JAMES HARRIS. "The Building of the Republic."
- 11.—ELIOT, CHARLES W. "The Independence of 1776 and the Dependence of 1911."
- 12.—PELLETIER, JOSEPH C. "Respect for the Law."
- 13.—MACFARLAND, GRENVILLE S. "A New Declaration of Independence."
- 14.—SUPPLE, REV. JAMES A. "Religion: The Hope of the Nation."
- 15.—BRANDEIS, LOUIS D. "True Americanism."
- 16.—CHAPPLE, JOE MITCHELL. "The New Americanism."
- 17.—GALLAGHER, DANIEL J. "Americans Welded by War."
- 18.—FAUNCE, WILLIAM H. P. "The New Meaning of Independence Day."
- 19.—DECOURCY, CHARLES A. "Real and Ideal American Democracy."
- 20.—WISEMAN, JACOB L. "America and its Vital Problem."
- 21.—MURLIN, DR. L. H. "Our Great American."
- 22.—BURKE, DR. JEREMIAH E. "Democracy and Education."
- 23.—LYONS, REV. CHARLES W., S. J. "The American Mind."

FOOTNOTES:

[A] Reprinted in Newport, R. I., 1774, 8vo., 19 pp.

[B] A third edition was published in 1773.

[1] Reprinted in Warren's Life. The orations of 1783 to 1786 were published in large quarto; the oration of 1787 appeared in octavo; the oration of 1788 was printed in small quarto; all succeeding orations appeared in octavo, with the exceptions stated under 1863 and 1876.

[2] Passed to a second edition.

[3] Delivered another oration in 1826. Quincy's oration of 1798 was reprinted, also, in Philadelphia.

[4] Not printed.

[5] On February 26, 1811, Peter Thacher's name was changed to Peter Oxenbridge Thacher. (List of Persons whose Names have been Changed in Massachusetts, 1780-1892, p. 21.)

[6] Six editions up to 1831. Reprinted also in his Life and Letters.

[7] Reprinted in his Municipal History of Boston. See 1798.

[8] Delivered another oration in 1862.

[9] There are five or more editions; only one by the City.

[10] Passed through three editions in Boston and one in London, and was answered in a pamphlet, Remarks upon an Oration delivered by Charles Sumner.... July 4th, 1845. By a Citizen of Boston. See Memoir and Letters of Charles Sumner, by Edward L. Pierce, vol. ii. 337-384.

[11] There is a second edition. (Boston: Ticknor, Reed & Fields. 1850. 49 pp. 12^o.)

[12] First published by the City in 1892.

[13] This and a number of the succeeding orations, up to 1861, contain the speeches, toasts etc., of the City dinner usually given in Faneuil Hall on the Fourth of July.

[14] Probably four editions were printed in 1857. (Boston: Office Boston Daily Bee 60 pp.) Not until November 22, 1864, was Mr. Alger asked by the City to furnish a copy for publication. He granted the request, and the first official edition (J. E. Farwell & Co., 1864, 53 pp.) was then issued. It lacks the interesting preface and appendix of the early editions.

[15] There is another edition. (Boston: Ticknor & Fields, 1859, 69 pp.) A third (Boston: Rockwell & Churchill, 1882, 46 pp.) omits the dinner at Faneuil Hall, the correspondence and events of the celebration.

[16] There is a preliminary edition of twelve copies. (J. E. Farwell & Co., 1863. (7), 71 pp.) It is "the first draft of the author's address, turned into larger, legible type, for the sole purpose of rendering easier its public delivery." It was done by "the liberality of the City Authorities," and is, typographically, the handsomest of

these orations. This resulted in the large-paper 75-page edition, printed from the same type as the 71-page edition, but modified by the author. It is printed “by order of the Common Council.” The regular edition is in 60 pp., octavo size.

[17] There is a large paper edition of fifty copies printed from this type, and also an edition from the press of John Wilson & Son, 1876. 55 pp. 8⁰.

[18] On Samuel Adams, a statue of whom, by Miss Anne Whitney, had just been completed for the City. A photograph of the statue is added.

[19] Contains a bibliography of Boston Fourth of July orations, from 1783 to 1889, inclusive, compiled by Lindsay Swift, of the Boston Public Library.

[20] Reprinted by the American Peace Society.

TRANSCRIBER'S NOTES:

Obvious typographical errors have been corrected.

Irregularities with the footnote numbering have been corrected.

*** END OF THE PROJECT GUTENBERG EBOOK ORATION: THE
AMERICAN MIND ***

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